COMMERCIAL ASSET TRANSFER & IP ASSIGNMENT AGREEMENT

Execution Version - Strictly Confidential & Privileged Legal Work Product

THIS COMMERCIAL ASSET TRANSFER AND INTELLECTUAL PROPERTY ASSIGNMENT AGREEMENT (the 'Agreement') is executed at Mumbai, Maharashtra on this 14th day of September, 2024, by and between:

1. TATA CONSULTANCY SERVICES LIMITED, a public listed company registered under the Companies Act, 2013, having its corporate office at TCS House, Raveline Street, Fort, Mumbai 400001 (hereinafter referred to as the 'Assignor', represented by its Authorized Signatory Mr. Rajesh Gopinathan);

AND

2. BHARAT INFOTECH SYSTEMS PRIVATE LIMITED, a private company incorporated under the laws of India, having its registered office at Cyber City, DLF Phase III, Gurugram, Haryana 122002 (hereinafter referred to as the 'Assignee', represented by its Managing Director Dr. Vikramaditya Sen).

RECITALS:
WHEREAS Assignor is the proprietary developer of enterprise banking neural-processing algorithms;
WHEREAS Assignee has agreed to acquire the proprietary codebase, patents, and customer pipelines for total consideration of INR 85,00,00,000 (Rupees Eighty-Five Crores Only);

OPERATIVE PROVISIONS:

CLAUSE 4: ASSIGNMENT OF PROPRIETARY ASSETS
Assignor assigns irrevocably to Assignee all global copyright, patent applications, and trademark goodwill.

CLAUSE 9.4: RESTRICTIVE COVENANTS & NON-COMPETE
For a period of 24 months from the Effective Date, the Assignor covenants not to solicit existing enterprise banking clientele. The parties explicitly record that in accordance with Section 27 of the Indian Contract Act, 1872 and the Supreme Court ratio in Percept D'Mark (India) (P) Ltd v. Zaheer Khan (2006) 4 SCC 227, any post-termination restriction restraining lawful trade or profession is void ab initio. Accordingly, this restriction shall strictly apply only during active operational transition and shall not impede individual developer employment rights.

CLAUSE 14: DISPUTE RESOLUTION & ARBITRATION

14.1 Any dispute, controversy or claim arising out of or relating to this Agreement shall be referred to and finally resolved by arbitration administered under the Arbitration and Conciliation Act, 1996 (as amended in 2015 and 2019).

14.2 The tribunal shall consist of a sole arbitrator appointed mutually by both parties. The parties explicitly acknowledge the doctrine in Perkins Eastman Architects DPC v. HSCC (India) Ltd (2019 SCC OnLine SC 1517), which mandates that a party having an interest in the dispute is disqualified from unilaterally appointing the sole arbitrator.

14.3 The Seat and Venue of arbitration shall be Mumbai, India. The proceedings shall be conducted in the English language.

CLAUSE 18: NOTICES & LEGAL COUNSEL CONTACT
All formal notices under this Agreement shall be addressed to:
To Assignor Legal Counsel:
Adv. Rohit Kulkarni, Senior Partner
Chandra & Rao Associates, Advocates & Solicitors
12th Floor, Express Towers, Nariman Point, Mumbai - 400021
Email: legal.notices@chandrarao-law.in | Phone: +91 22 6789 4400

To Assignee Legal Counsel:
Adv. Meenakshi Sundaram
Sundaram & Partners, Advocates
Connaught Place, New Delhi - 110001

IN WITNESS WHEREOF, the Authorized Signatories have affixed their corporate seals and signatures on the date first above written.